Verification

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Question

Can dependent children who are located overseas be added as secondary applicants to an onshore partner visa application?

Conversation Details

- An onshore partner visa application is being made in Australia.
- The applicant's children are currently located overseas.

Title

Can dependent children who are located overseas be added as secondary applicants to an onshore partner visa application?

Verified Answer

As at **3 April 2026**, the answer is **no**: a dependent child who is **remaining overseas** cannot be added as a **secondary applicant** to a pending **onshore partner visa application** (the concurrent **Class UK / subclass 820** and **Class BS / subclass 801** application). The controlling provisions are the **Schedule 1 validity/location rules**, not the grant-location rules. For the onshore partner classes, the applicant must be **in Australia, but not in immigration clearance**, and a dependent child may only make a combined application at the same time and place as the primary applicant.

The structure matters. Schedule 1 item **1214C** (Partner (Temporary) (Class UK)) requires the Class UK application to be made at the same time and place as the Class BS application, and provides that the **applicant must be in Australia**; it also allows a dependent child's application to be combined with the primary UK application. Schedule 1 item **1124B** (Partner (Residence) (Class BS)) similarly requires the **applicant** to be in Australia and allows a family-unit application to be combined with the primary BS application. In Schedule 2, clause **820.311** confirms that a dependent child of a person who has applied for Class BS can satisfy the **secondary criteria** for subclass 820. Read together, those provisions contemplate a child as a secondary applicant, but only where the child satisfies the onshore application requirements at the time of lodgment.

The same answer follows if the primary application has **already been lodged** and the practitioner is considering a later addition. Regulation **2.08A** permits a spouse or dependent child to be added to certain **permanent** visa applications; regulation **2.08B** permits a dependent child to be added to certain **temporary** visa applications, including **Class UK**. But both provisions expressly require that, at the time of the request/additional-charge payment, the added child satisfies the **Schedule 1 whereabouts requirements** for that visa class. For an onshore partner application, those whereabouts rules again point back to the requirement that the applicant be **in Australia**. So an offshore child cannot be added **from offshore** under either mechanism.

A useful qualification is that an overseas child may still need to be **declared** in the application even if not applying as a visa applicant. Clause **820.224(1A)** deals with members of the family unit who are **not** applicants for subclass 820, and still imposes health-related public interest criteria on them unless waived as unreasonable. So the practical position is often: **declare the child, but do not treat the child as an offshore secondary applicant to the onshore partner application.**

If the children are to remain overseas while the parent's onshore partner application is processed, the statutory and administrative materials point to the **subclass 445 Dependent Child** pathway as the orthodox mechanism **after the parent has been granted the subclass 820.** The current Regulations support that: Schedule 1 item **1211** allows the subclass 445 applicant to be **in or outside Australia** at application, and clause **445.411** allows grant **in or outside Australia.** The 2022 amending regulations also expressly describe the purpose of the changes as enabling subclass 445 children to enter and/or remain in Australia while the parent's permanent partner application is decided.

Once the child holds subclass 445, the route into the parent's pending permanent partner application is Form **1002.** Form 1002 states that it is used by a subclass 445 holder to be added to a parent's permanent partner application and that the parent must already hold subclass **820** or **309.** Crucially for an **onshore** permanent partner application, the form says the subclass 445 holder **must be in Australia to be added to the parent's subclass 801 application.** The Regulations are consistent: clause **801.311** recognises a dependent child of a person who has applied for Class BS, and clause **801.321** specifically accommodates applicants who hold (or held) subclass **445** or **820.**

Accordingly, the precise answer is: **not while the children remain overseas.** They can only become secondary applicants to the onshore partner application if they first meet the **onshore application-location requirement**—that is, they are in Australia when the combined application is made or when the later-addition request under regs 2.08A/2.08B is made. If they stay overseas, the proper course is ordinarily to wait until the parent is granted **subclass 820**, then have the child apply for **subclass 445**, enter Australia, and then be added to the pending **subclass 801** stage by Form **1002.** If the child does come to Australia before the 820 is decided, there is, in principle, a route to add the child under**** regulation **2.08B** then; but if the child is not the holder of a substantive visa, clause **820.312** engages Schedule 3 issues, which requires that Minister is satisfied that there are compelling reasons for not applying those criteria.

Resources

- Migration Regulations 1994 (Cth)
- Migration Amendment (2022 Measures No. 1) Regulations 2022 (Cth), Schedule 2 / Explanatory Statement